



CHAPTER liii.

An Act for confirming the construction of works and authorising the construction of new works for conferring further powers upon the South Hants Waterworks Company and for other purposes. [26th July 1910.] A.D. 1910.

WHEREAS by the South Hants Water Act 1876 (in this Act called "the Act of 1876") the South Hants Waterworks Company (in this Act called "the Company") were incorporated and authorised to supply water within the limits of supply defined in that Act:

And whereas by the South Hants Water Act 1878 (in this Act called "the Act of 1878") the South Hants Water Act 1894 (in this Act called "the Act of 1894") and by the South Hants Water Act 1899 (in this Act called "the Act of 1899") the limits of supply of the Company were extended as in those Acts defined:

And whereas the authorised capital of the Company under the aforesaid Acts amounts to two hundred and eighty-five thousand pounds of which two hundred and fourteen thousand five hundred and fifty pounds has been created and issued and forty thousand eight hundred and twenty-eight pounds eighteen shillings and sixpence has been received by way of premium and the whole of these sums has been expended and the Company are authorised to borrow seventy-one thousand two hundred and fifty pounds of which they have borrowed and now owe fifty thousand pounds all of which has been expended:

And whereas it is expedient that the construction by the Company of the waterworks and the acquisition of lands and

A.D. 1910. expenditure of capital for and in connection therewith in this Act mentioned in that behalf should be sanctioned and confirmed and that the Company should be empowered to make and maintain the new waterworks and to acquire the lands in this Act mentioned in that behalf:

And whereas it is expedient that the Company should be empowered to raise additional capital for the purposes of this Act and the general purposes of their undertaking and to apply their funds to those purposes and that further powers should be conferred upon the Company as provided by this Act:

And whereas plans and sections of the works by this Act sanctioned and confirmed and the lands acquired by the Company for and in connection therewith and of the new works by this Act authorised showing the lines and levels thereof and plans also showing the lands by this Act authorised to be taken and a book of reference to the last-mentioned plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the said lands were duly deposited with the clerk of the peace for the county of Southampton and are hereinafter respectively referred to as the deposited plans sections and book of reference:

And whereas the objects aforesaid cannot be attained without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

Short title.

1. This Act may be cited as the South Hants Water Act 1910 and the Act of 1876 the Act of 1878 the Act of 1894 the Act of 1899 and this Act may be cited together and are in this Act referred to as the South Hants Water Acts 1876 to 1910.

Incorporation of Acts.

2. The following Acts and parts of Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act:—

(1) The Lands Clauses Acts:

(2) The Waterworks Clauses Acts 1847 and 1863 (except the words "with the consent in writing of the owner

“ or reputed owner of any such house or of the agent
“ of such owner ” in section 44 of the Waterworks
Clauses Act 1847): A.D. 1910.

- (3) The provisions of the Companies Clauses Consolidation Act 1845 with respect to the following matters (namely) :—

The distribution of the capital of the Company into shares ;

The transfer or transmission of shares ;

The payment of subscriptions and the means of enforcing the payment of calls ;

The forfeiture of shares for non-payment of calls ;

The remedies of creditors of the Company against the shareholders ;

The borrowing of money by the Company on mortgage or bond ;

The consolidation of the shares into stock ;

The general meetings of the Company and the exercise of the right of voting by the shareholders ;

The making of dividends ;

The giving of notices ; and

The provision to be made for affording access to the special Act by all parties interested ;

and Part I. (relating to cancellation and surrender of shares) Part II. (relating to additional capital) and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts :

- (4) The clauses and provisions of the Railways Clauses Consolidation Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof and in the application of that Act to this Act the term “ railway ” shall mean the reservoirs by this Act authorised and the expression “ centre of the railway ” shall mean the boundaries of the reservoirs shown on the deposited plans.

3. Unless there be something in the subject or context repugnant to such construction the several words and expressions to which by the Acts in whole or in part incorporated with this

Interpretation.

A.D. 1910. Act meanings are assigned have in this Act the same respective meanings And in this Act—

The expression “the undertaking” means the undertaking of the Company authorised by the South Hants Water Acts 1876 to 1910;

The expression “the existing works” means the works of the Company already in existence the construction of which is sanctioned and confirmed by this Act;

The expression “the new works” means the works to be constructed by the Company under the powers of this Act.

Confirming
construction
of existing
works.

4. The construction by the Company of the existing works next hereinafter described is hereby sanctioned and confirmed and the Company may maintain and from time to time alter improve renew reconstruct or discontinue all or any of the same and may enter upon take hold and use such of the lands delineated on the deposited plans and described in the deposited book of reference as may be required for those purposes and may retain hold and use as part of and for the purposes of the undertaking all or any of the lands or any interest in the lands in this section described and shown upon the deposited plans which have been already acquired by the Company for the purposes of or in connection with the said works and the expenditure of any capital already incurred for the purposes of any of the said works or lands is hereby sanctioned and confirmed Provided that the said lands so acquired by the Company shall for the purposes of section 3 of the Housing of the Working Classes Act 1903 be deemed to have been acquired under the powers of this section The existing works hereinbefore referred to are situate wholly in the county of Southampton and are—

Work No. 1 A pumping station and well situate wholly in the parish of Twyford in the rural district of Winchester constructed in and upon land forming part of the fields numbered 247 and 273 on the $\frac{1}{2500}$ Ordnance map (2nd edition 1896) of the said parish:

Work No. 2 An aqueduct conduit or line of pipes situate wholly in the said parish of Twyford commencing at the pumping station (Work No. 1) thence passing in a southerly direction through the fields numbered 247 and 273 and 282 on the $\frac{1}{2500}$ Ordnance map (2nd edition 1896) of the said parish of Twyford and terminating at the reservoir (Work No. 3) hereinafter described:

Work No. 3 A covered service reservoir situate wholly in the said parish of Twyford in and upon land forming part of the field numbered 282 on the $\frac{1}{2500}$ Ordnance map (2nd edition 1896) of the said parish of Twyford: A.D. 1910.

Work No. 4 An aqueduct conduit or line of pipes situate partly in the said parish of Twyford and partly in the parish of Compton in the said rural district of Winchester commencing in the said parish of Twyford at the pumping station (Work No. 1) and terminating in the said parish of Compton at the reservoir (Work No. 5) hereinafter described:

Work No. 5 A covered service reservoir situate wholly in the said parish of Compton (now in course of completion by the Company) in and upon land forming part of the field numbered 2 on the $\frac{1}{2500}$ Ordnance map (2nd edition 1896) of the said parish of Compton:

Work No. 6 An aqueduct conduit or line of pipes situate partly in the said parish of Compton partly in the parish of Otterbourne partly in the parish of Hursley and partly in the parish of Chandler's Ford (formerly part of the parish of Ampfield) in the rural district of Hursley commencing in the said parish of Compton by a junction with the line of pipes (Work No. 4) at Shawford Down at a point in the said line of pipes 1 chain or thereabouts measured in an easterly direction from the centre of the Winchester and Southampton main road and terminating in the said parish of Chandler's Ford by a junction with the Company's existing main in the said main road opposite Hildon Villas:

Work No. 7 An aqueduct conduit or line of pipes situate wholly in the said parish of Twyford commencing at the reservoir (Work No. 3) thence passing in a north-westerly direction through the fields numbered 282 and 273 and 246 on the $\frac{1}{2500}$ Ordnance map (2nd edition 1896) of the said parish of Twyford and terminating by a junction with the line of pipes (Work No. 8) hereinafter described at a point in the main road from Winchester to Botley opposite the Bugle Inn at Twyford:

Work No. 8 An aqueduct conduit or line of pipes situate partly in the said parish of Twyford and partly in the

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parish of Bishopstoke in the urban district of Eastleigh and Bishopstoke commencing in the said parish of Twyford by a junction with the line of pipes (Work No. 4) at a point in the main road from Winchester to Botley opposite the Dolphin Inn at Twyford and terminating in the said parish of Bishopstoke by a junction with the Company's existing main at a point in the road leading from Eastleigh to Fair Oak opposite the Bishopstoke Corn Mill:

Work No. 9 A covered service reservoir situate wholly in the said parish of Bishopstoke in and upon land forming part of the field numbered 98 on the $\frac{1}{2500}$ Ordnance map (2nd edition 1896) of the said parish of Bishopstoke:

Work No. 10 An aqueduct conduit or line or lines of pipes situate wholly in the said parish of Bishopstoke commencing by junctions with the said line of pipes (Work No. 8) at points in the road leading from Twyford to Bishopstoke 20 chains or thereabouts measured in a northerly direction along the said road from the north-west corner of the graveyard of St. Mary's Church at Bishopstoke passing thence in an easterly direction through the field numbered 98 on the $\frac{1}{2500}$ Ordnance map (2nd edition 1896) of the said parish of Bishopstoke and terminating at the reservoir (Work No. 9):

And the Company may—

- (A) For the purposes of and in connection with Work No. 1 retain hold and use the field or part of the field in the said parish of Twyford numbered 29 on the $\frac{1}{2500}$ Ordnance map (2nd edition 1896) of that parish and the expenditure of capital thereon is hereby sanctioned and confirmed:
- (B) For the purposes of Work No. 4 acquire by compulsion or agreement an easement or right to lay mains pipes and other works in or under the road or track leading from Shawford to Compton Down in the said parish of Compton numbered 166 on the $\frac{1}{2500}$ Ordnance map (2nd edition 1896) of that parish and also under part of the field No. 2 on the $\frac{1}{2500}$ Ordnance map (2nd edition 1896) of the same parish:
- (c) For the purposes of Work No. 8 acquire by compulsion or agreement an easement or right to lay mains

pipes and other works in or under Spring Lane in the said parish of Twyford numbered 374 on the $\frac{1}{2500}$ Ordnance map (2nd edition 1896) of that parish and 407 on the $\frac{1}{2500}$ Ordnance map (edition 1909) of that parish. A.D. 1910.

5. Subject to the provisions of this Act the Company may wholly in the county of Southampton and in the lines and situation and according to the levels shown on the deposited plans and sections make and maintain the new works hereinafter described and may enter upon take and use such of the lands delineated on the deposited plans and described in the deposited book of reference as may be required for that purpose (that is to say):— Power to make water-works.

Work No. 11 A covered service reservoir to be situate wholly in the parish of West End (formerly part of the parish of South Stoneham) in the rural district of South Stoneham in and upon land at Moorhill forming part of the copse numbered 491 on the $\frac{1}{2500}$ Ordnance map (2nd edition 1896) of the said parish of West End:

Work No. 12 An aqueduct conduit or line or lines of pipes to be situate partly in the said parish of West End and partly in the parish of Hedge End (formerly part of the said parish of South Stoneham) in the said rural district of South Stoneham commencing in the said parish of West End at the said intended reservoir (Work No. 11) and terminating in that parish at the intended reservoir (Work No. 13) hereinafter described:

Work No. 13 A covered service reservoir to be situate wholly in the said parish of Hedge End in and upon land forming part of the field numbered 246 on the $\frac{1}{2500}$ Ordnance map (2nd edition 1897) of the said parish of Hedge End:

Work No. 14 An aqueduct conduit or line or lines of pipes to be situate partly in the said parish of Hedge End and partly in the parish of Botley in the said rural district of South Stoneham commencing in the said parish of Hedge End at the intended reservoir (Work No. 13) and terminating in the said parish of Botley at the eastern end of Botley High Street:

Work No. 15 An aqueduct conduit or line or lines of pipes to be situate partly in the parish of Bursledon in the

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said rural district of South Stoneham and partly in the parish of Sarisbury (formerly part of the parish of Titchfield) in the rural district of Fareham and commencing in the said parish of Bursledon by a junction with the Company's existing main in the Southampton to Portsmouth main road at a point on the said road $1\frac{1}{2}$ chains or thereabouts measured in a north-westerly direction from the centre of the bridge carrying the Netley and Fareham line of the London and South Western Railway over the said road and terminating in the said parish of Sarisbury at a point in the said road $3\frac{1}{2}$ chains or thereabouts measured in a southerly direction from the centre of the bridge near Swanwick railway station carrying the said road over the Netley and Fareham line of the London and South Western Railway:

Work No. 16 An aqueduct conduit or line or lines of pipes to be situate partly in the said parish of Twyford partly in the parish of Owslebury partly in the parish of Stoke Park and partly in the parish of Fair Oak all in the said rural district of Winchester commencing in the said parish of Twyford by a junction with the line of pipes (Work No. 8) hereinbefore described at a point in the Winchester to Botley main road opposite the end of Spring Lane and terminating in the said parishes of Stoke Park and Fair Oak at a point in the said road opposite the Methodist Chapel at Crowdhill:

Work No. 17 An aqueduct conduit or line or lines of pipes to be situate partly in the said parish of Compton in the rural district of Winchester and partly in the parish of Hursley in the rural district of Hursley and commencing in the said parish of Compton by a junction with the line of pipes (Work No. 4) hereinbefore described at a point in the said line of pipes $\frac{1}{2}$ chain or thereabouts measured in an easterly direction from its termination and terminating in the said parish of Hursley at the junction of the occupation road numbered 78 on the $\frac{1}{2500}$ Ordnance map of the said parish (2nd edition 1896) with the main road from Winchester to Romsey.

Limits of
deviation.

6. In the construction of the new works the Company may deviate laterally to any extent not exceeding the limits of lateral deviation shown on the deposited plans and where on any road

no such limits are shown the boundaries of such road shall be deemed to be such limits and they may also deviate vertically from the levels shown on the deposited sections to any extent not exceeding in the case of the reservoirs three feet upwards and five feet downwards and in the case of other works three feet upwards and to any extent downwards Provided as follows (that is to say):—

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The Company shall not construct any embankment or wall of such reservoirs of a greater height above the general surface of the ground than that shown on the deposited sections in respect of the corresponding embankment or wall and three feet in addition :

Except for the purposes of crossing over a river or stream no part of the pipes shall be raised above the surface of the ground unless and except so far as is shown on the deposited sections.

7. Subject to the provisions of this Act the existing works and the new works of the Company shall for all purposes whatsoever form part of and be comprised in the undertaking of the Company.

Works to form part of undertaking.

8. Subject to the provisions of this Act the Company may for the purposes of the undertaking collect impound take use divert and appropriate all such springs streams and waters as will or may be intercepted by the works by this Act sanctioned confirmed or authorised.

Power to take waters.

9. For the protection of the mayor aldermen and burgesses of the borough of Southampton (in this section called "the corporation") the following provisions shall unless otherwise agreed in writing between the Company and the corporation apply and have effect (that is to say) :—

For protection of Southampton Corporation.

(1) The quantity of water to be pumped by the Company from their wells and pumping station at Twyford shall not exceed two and a half million gallons in any one day of twenty-four hours :

(2) For the purpose of ascertaining the quantity of water pumped by the Company the Company shall within one month from the passing of this Act provide at that pumping station and shall at all times thereafter maintain in an efficient state of repair suitable appliances for automatically measuring or otherwise

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ascertaining and recording the quantity of water so pumped and such appliances and records shall at all reasonable hours in the daytime be open to the inspection of the corporation or any person duly authorised in writing by them :

- (3) If it appears that the Company have been pumping water at such pumping station in excess of the amounts prescribed by this section they shall be liable to a penalty not exceeding fifty pounds for every day on which they have exceeded any such prescribed quantity but without prejudice to any other right or remedy :
- (4) If at any time any such appliances shall be in an unfit state of repair or condition for the purpose for which they are used the same shall be forthwith put into a proper state of repair and condition by the Company and if at any time for a space of twenty-one days after written notice given to them in that behalf by the corporation the Company fail or neglect to put any such appliances into a proper state of repair and condition they shall be liable to a penalty not exceeding five pounds for every day after such period of twenty-one days until they have either renewed such appliances or put the same in a proper state of repair and condition.

Period for
compulsory
purchase of
lands.

10. The powers of the Company for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of five years from the passing of this Act.

Period for
completion
of works.

11. If the new works by this Act authorised are not completed within the period of seven years from the passing of this Act then on the expiration of such period the powers by this Act granted to the Company for executing the same or in relation thereto shall cease except as to so much thereof as is then completed but nothing in this Act shall restrict the Company from extending enlarging altering reconstructing or removing any of their tanks tunnels engines sluices machinery apparatus filter-beds mains pipes or other works or plant at any time and from time to time as occasion may require.

Power to
make sub-
sidiary
works.

12. In addition to the foregoing works the Company may upon the lands described in this Act make and maintain all such cuts channels catchwaters tunnels adits pipes conduits

culverts drains sluices byewashes shafts wells bores water-towers
overflows waste-water channels gauges filter-beds tanks banks
walls bridges embankments piers approaches engines machinery
telegraphs telephones and other apparatus and appliances as may
be necessary or convenient in connection with or subsidiary to
the before-mentioned works or any or either of them but nothing
in this section shall exonerate the Company from any action
indictment or other proceeding for nuisance in the event of any
nuisance being caused or permitted by them.

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13. Any telegraphs telephones and other apparatus and
appliances constructed laid down erected made or maintained by
the Company under the authority of this Act shall not be used
in contravention of the exclusive privilege conferred upon the
Postmaster-General by the Telegraph Act 1869.

For pro-
tection of
Postmaster-
General.

14. The Company shall not under the powers of this Act
construct on the shore of the sea or of any creek bay arm of
the sea or navigable river communicating therewith where and
so far up the same as the tide flows and reflows any work
without the previous consent of the Board of Trade to be signified
in writing under the hand of one of the secretaries or assistant
secretaries of the Board of Trade and then only according to
such plan and under such restrictions and regulations as the
Board of Trade may approve of such approval being signified as
last aforesaid and where any such work may have been con-
structed the Company shall not at any time alter or extend the
same without obtaining previously to making any such alteration
or extension the like consents or approvals If any such work
be commenced or completed contrary to the provisions of this
section the Board of Trade may abate and remove the same and
restore the site thereof to its former condition at the costs and
charges of the Company and the amount of such costs and charges
shall be a debt due from the Company to the Crown and shall
be recoverable as a Crown debt or summarily.

Works below
high-water
mark not
to be com-
menced with
out consent
of Board of
Trade.

15. For the protection of the Bursledon Bridge and Roads
Company (hereinafter in this section referred to as "the bridge
company") the following provisions shall unless otherwise agreed
in writing between the bridge company and the Company apply
and have effect (that is to say):—

For pro-
tection of
Bursledon
Bridge and
Roads Com-
pany.

- (1) Notwithstanding anything contained in this Act or shown
on the deposited plans and sections the Company shall
so construct the aqueduct conduit or line or lines of

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pipes (Work No. 15) by this Act authorised that no part of the same or of the bridge and supports by which the same is intended to be carried over the foreshore and bed of the River Hamble shall be within 12 feet of any part of the Bursledon Bridge and the said Work No. 15 in so far as it is intended to be situate in any road owned or maintained by the bridge company or in the approaches to the Bursledon Bridge shall be laid only in such line and situation as may be first reasonably approved by the bridge company or in the event of any difference between the bridge company and the Company as may be settled by arbitration in the manner provided by this section but so that the Company shall not break up or interfere with the approaches to the Bursledon Bridge to any greater extent than is absolutely necessary for the purpose of laying down the said Work No. 15:

- (2) Before commencing to construct or lay down any part of the said Work No. 15 so far as the same is in under alongside or over the said bridge or approaches or the foreshore of the bridge company the Company shall submit to the bridge company for the approval of their engineer plans sections elevations and specifications in duplicate of the works intended to be so constructed and the work shall not be commenced until such plans sections elevations and specifications shall have been reasonably approved by the engineer of the bridge company or settled by arbitration as hereinafter provided Provided always that if within twenty-one days from the delivery of the said plans sections elevations and specifications the said engineer shall not have expressed his disapproval thereof he shall be deemed to have approved the same The said works shall be carried out in all respects in accordance with the said plans sections elevations and specifications as approved by the said engineer or as settled by arbitration as herein provided as the case may be and the work shall be done under the superintendence if he desires to attend and to the reasonable satisfaction of the said engineer and in such manner as the said engineer shall reasonably require for the proper protection of the property of the bridge company :

- (3) Not less than four days' notice in writing shall be given by the Company to the bridge company before commencing the works: A.D. 1910.
- (4) The Company shall make compensation to the bridge company in respect of any injury or damage caused to the Bursledon Bridge or the approaches thereto or other property of the bridge company owing to any act or default of the Company or which may be occasioned by the carrying out of any works of the Company in under alongside or over the said bridge or approaches or after completion thereof by reason of the failure of any such works:
- (5) The bridge company shall allow the Company to use the Bursledon Bridge free of all tolls and charges during the construction by the Company of their said works but not after the completion thereof and subject in all other respects to the regulations in force for the use of the said bridge:
- (6) The Company shall pay to the bridge company the reasonable costs of supervising the works of the Company so far as they affect the property of the bridge company:
- (7) The Company shall to the satisfaction of the engineer of the bridge company reinstate the approaches to the Bursledon Bridge and the other property of the bridge company so far as the same shall be interfered with by the Company and keep the road on or over such approaches in good repair for three months thereafter and such further time (if any) not being more than twelve months in the whole as the soil of such road shall continue to subside and shall at all times maintain the said works where they will be upon or be liable to affect the property of the bridge company in substantial repair and good order to the reasonable satisfaction of the said engineer and if and whenever the Company fail so to do after the bridge company shall have given fourteen days' notice in writing the bridge company may make and do all such works repairs and things as may be reasonably requisite for the protection of such property and the cost thereof shall be repaid by the Company to the bridge company on demand:

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(8) The Company may acquire and the bridge company may and shall sell only such an easement or right in across over or under any land or property of the bridge company as may be necessary for constructing or maintaining any of the works of the Company and the Company shall pay to the bridge company for any such easement or right the sum of one hundred pounds:

(9) If any difference shall arise under this section or as to anything thereunder such difference shall be referred to and determined by an engineer to be agreed upon between the parties or failing agreement to be appointed on the application of either of the parties by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference.

For protection of
London and
South Western
Railway
Company.

16. For the protection of the London and South Western Railway Company (in this section referred to as "the South Western Company") the following provisions shall unless otherwise agreed between the Company and the South Western Company apply and have effect (namely):—

(A) In laying down repairing or removing any water mains or pipes or executing any other works in the exercise of the powers relative to the supply of water contained in this Act upon across over under or in any way affecting the railway of the South Western Company or any bridge over or under such railway or any approaches to any such bridge or within the South Western Company's boundary and maintained by that company (hereinafter called "the railway works") the same shall be done under the superintendence and to the reasonable satisfaction of the engineer of the South Western Company and according to such plans sections and specifications and except in case of urgent necessity at such times as shall be previously submitted to and shall be reasonably approved in writing by him or in the event of disapproval then in such manner as shall be determined by arbitration in manner hereinafter provided and shall be executed by and at the expense in all things of the Company

and so as not to cause any injury to the railway works and so as to interfere with or impede as little as possible any improvement or widening of such railway or bridge or the introduction of side openings to such bridge Provided that if the said engineer does not express his approval or disapproval of the said plans sections and specifications within twenty-one days after the same have been submitted to him he shall be deemed to have approved thereof and that if the said engineer shall refuse or neglect to superintend any operations the Company may execute the work without his superintendence Provided also that where there is not sufficient space on any bridge to lay any mains or pipes between the road surface and the structure of any such bridge the South Western Company may require such mains or pipes to be carried outside the structure of any such bridge and shall afford all reasonable facilities for the purpose subject to the conditions hereinbefore contained so far as the same may be applicable thereto:

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- (B) The Company shall give fourteen days' notice in writing to the South Western Company before commencing any of the said works within ten yards of the South Western Company's boundary:
- (c) If any injury or damage to the railway works or property of the South Western Company or any interruption to the South Western Company's traffic shall be in any way occasioned by the Company or their contractors agents or workmen or arise from bursting or want of repair of any mains or pipes the Company shall forthwith make full compensation to the South Western Company in respect thereof and the amount of such compensation shall failing agreement be determined by arbitration in manner hereinafter provided:
- (D) All water mains or pipes and other works of the Company upon across over under or in any way affecting the railway works shall be at all times maintained in good repair by the Company and in default of their being so maintained the South Western Company may from time to time by notice signed by their said engineer and delivered at the principal office for

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the time being of the Company require the Company to forthwith put the same into good repair and if the Company for fourteen days after the receipt of such notice refuse or neglect to proceed with the repair of the same and do not dispute the necessity thereof in which case the matter in dispute shall be decided by arbitration in manner hereinafter provided the South Western Company may without any further notice to the Company repair the same and all costs and expenses properly incurred by them in or about such repair shall be repaid to them by the Company Provided that in case of accidents happening or immediate danger being apprehended to the railway works by reason of any such water main pipe or other work as aforesaid being in want of repair the South Western Company may execute such repairs as may be immediately necessary forthwith and shall give the earliest possible notice to the Company and the expenses of the same properly incurred shall be repaid to the South Western Company by the Company:

- (E) If the South Western Company in the exercise of their existing powers require to widen or alter their railway or to widen lengthen strengthen reconstruct alter repair lift or support any bridge over or under such railway or the approaches to such bridge the Company shall afford to the South Western Company all reasonable and proper facilities for the purpose and the Company shall pay to the South Western Company any additional expense which the South Western Company may incur in effecting such widening lengthening strengthening reconstructing altering repairing lifting or supporting or in the maintenance of any bridge approach or other work of the South Western Company by reason of the existence or user of the mains pipes or other works constructed under the powers of this Act:
- (F) The Company shall bear and on demand pay to the South Western Company all reasonable costs of the superintendence by them of the construction of the works and repairs thereof and all reasonable costs of watching lighting and protection of the railway works with reference to and during such construction and repairs:

- (g) Any difference which may arise between the South Western Company and the Company touching any of the matters referred to in this section shall be decided by a single arbitrator to be appointed on the application of either party by the President for the time being of the Institution of Civil Engineers and at the cost of the Company and subject as aforesaid the Arbitration Act 1889 shall apply to the reference. A.D. 1910.

17. For the protection of the Southampton Gas Light and Coke Company (in this section referred to as "the gas company") the following provisions shall in relation to the exercise by the Company of the powers conferred by the section of this Act the marginal note whereof is "Detection of waste" apply and have effect unless otherwise agreed in writing between the Company and the gas company (that is to say):—

For protection of Southampton Gas Light and Coke Company.

- (1) The Company shall give not less than three days' notice to the gas company before commencing any works affecting the gas mains pipes or other apparatus of the gas company (hereinafter referred to as "mains and pipes") or before breaking up any part of a street in or under which any mains and pipes may be placed or altering affecting or interfering with mains and pipes and such works shall be done with as little detriment and inconvenience to the gas company as the circumstances will admit and under the superintendence of the engineer of the gas company if he think fit to attend:
- (2) The Company shall not remove or displace any mains and pipes or do anything to impede the passage of gas into or through the mains and pipes until good and sufficient mains and pipes and all other works necessary or proper for continuing the supply of gas as sufficiently as the same was supplied by the mains and pipes proposed to be removed or displaced shall at the expense of the Company have been first made and laid down in lieu thereof and ready for use in a position as little varying from that of the mains and pipes proposed to be removed or displaced as may in the circumstances be practicable and to the satisfaction of the engineer of the gas company:
- (3) The gas company on giving not less than forty-eight hours' notice in writing to the Company of their

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intention so to do may by their own engineer and workmen execute any work in connection with their mains and pipes as may be necessary and the Company shall on the completion thereof pay to the gas company the reasonable expenses incurred by them in such execution :

(4) The Company shall make good all damage done to the property of the gas company by the disturbance thereof and shall make full compensation to the Company and all parties for any loss or damage they may sustain by reason of any interruption in the supply of gas or interference with the mains and pipes of the gas company :

(5) If any difference shall arise in respect of any matter under this section between the Company and the gas company or between their respective engineers the matter in difference shall be referred to and settled by an arbitrator to be agreed upon or failing agreement to be appointed on the application of either party by the President for the time being of the Institution of Civil Engineers and the Arbitration Act 1889 shall apply to the reference.

For protection of
Winchester
Water and
Gas Com-
pany.

18. For the protection of the Winchester Water and Gas Company (in this section called "the Winchester Company") the following provisions shall unless otherwise agreed apply and have effect (that is to say) :—

(1) At least fourteen days before commencing the execution of any works under the powers of this Act which will interfere with or affect any mains pipes or apparatus of the Winchester Company (hereinafter called "apparatus") or before breaking up any part of a street or road in or under which apparatus may be placed or altering affecting or interfering with any apparatus the Company shall submit to the Winchester Company plans sections and a description of the works so proposed to be executed describing the proposed manner of executing the same and a notice stating the date when it is proposed to commence such works and if within fourteen days from the submission of such plans sections and description the Winchester

Company make any further requirements in relation thereto for the reasonable protection of the apparatus such works shall not be commenced until such requirements have been agreed or settled by arbitration as hereinafter provided. Provided that if the Winchester Company do not within fourteen days after submission signify their requirements in relation thereto the Winchester Company's apparatus shall be dealt with (at the cost in all things of the Company) only in accordance with such plans sections and description and all works involving the interference with or affecting such apparatus shall be executed under the superintendence and to the reasonable satisfaction of the engineer of the Winchester Company and the reasonable costs charges and expenses of such superintendence shall be paid by the Company:

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- (2) The Winchester Company on giving not less than forty-eight hours' notice (except in cases of emergency) in writing of their intention so to do may by their own engineer and workmen execute any work in connection with their apparatus that may be reasonably necessary for the diversion shoring up or supporting or otherwise altering the position of and restoring and protecting any such apparatus which it may be necessary to divert shore up support alter restore or protect by reason of the execution of any works of the Company and for preventing any interruption to the supply of gas by the Winchester Company and the Company shall on completion pay to the Winchester Company the reasonable expenses incurred by them in the execution of such work:
- (3) If any interruption in obstruction to or interference with the supply of gas by the Winchester Company or any loss of gas shall be in any way occasioned or sustained by any act or omission of the Company or by the act or acts of any of their contractors agents workmen or servants or any person in the employ of them or any or either of them in the execution by the Company of such works the Company shall pay to the Winchester Company such compensation for loss or damage sustained as may be agreed or failing

A.D. 1910.

agreement as shall be settled by arbitration as provided by this section :

(4) The expense of all repairs or renewals of any apparatus of the Winchester Company or any works in connection therewith which may at any time hereafter be rendered necessary by the acts or defaults of the Company their contractors agents workmen or servants or any person in the employ of them or any or either of them or rendered necessary by reason of any subsidence resulting from the works of the Company whether during the construction of the said works or at any time thereafter shall be borne and paid by the Company and may be recovered against the Company by the Winchester Company :

(5) If any difference arises respecting any matter under this section between the Company and the Winchester Company or their respective engineers under the provisions of this section the matter in difference shall unless otherwise agreed be determined by an engineer to be agreed upon or failing agreement to be appointed on the application of either party by the president for the time being of the Institution of Civil Engineers and the provisions of the Arbitration Act 1889 shall extend and apply to the determination of such difference :

(6) Notwithstanding anything in the Acts of 1876 to 1910 contained the Company shall not supply water within the statutory area for the supply of water of the Winchester Company without the previous consent in writing of the Winchester Company.

For protection of
South-
ampton
County
Council.

19. The provisions of section 7 (For protection of Southampton County Council) of the Act of 1899 shall apply and have effect as if the same had been expressly re-enacted in this Act with reference to the works authorised by this Act.

Power to
acquire ad-
ditional lands
by agree-
ment.

20. The Company may in addition to any other lands now belonging to them or which they are by this Act authorised to purchase compulsorily purchase take on lease or acquire by agreement and hold any lands not exceeding in the whole twenty acres and may on all or any of such additional lands execute for the purposes of or in connection with their waterworks any of

the works (other than wells and works for taking or intercepting water) and exercise any of the powers mentioned in or conferred by section 12 of the Waterworks Clauses Act 1847 and the Company may also purchase by agreement any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) in under or over such additional lands which they may think requisite Provided that so long as any lands acquired by or leased to the Company under this section are held by them the Company shall not on any such lands cause or permit a nuisance or erect or authorise or permit the erection of any buildings other than offices and dwellings for persons in their employ and buildings connected with or necessary for the undertaking.

A.D. 1910.

21.—(1) The Company may in lieu of acquiring any lands for the purposes of the works authorised by this Act where the same are intended to be constructed underground acquire such easements only in such lands as they may require for such purposes and may give notice to treat in respect of such easements describing the nature thereof and the provisions of the Lands Clauses Acts shall apply to and in respect of the acquisition of such easements as fully as if the same were lands within the meaning of those Acts.

Power to
acquire ease-
ments only
in certain
cases.

(2) As regards any lands in respect of which the Company have acquired easements only under the provisions of this section the Company shall not be required or entitled to fence off or sever such lands from the adjoining lands but the owners or occupiers for the time being shall subject to such easements have the same rights to use and cultivate the said lands at all times as if this Act had not passed.

(3) Provided always that nothing in this section contained shall authorise the Company to acquire by compulsion any such easement in any case in which the owner in his particulars of claim shall require the Company to acquire the lands in respect of which they have given notice to treat for the acquisition of an easement only and every notice to treat for the acquisition of an easement shall be endorsed with notice of this provision.

22. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company any easement right or privilege (not being an easement right

Persons
under dis-
ability may
grant ease-
ments &c.

A.D. 1910. or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Power to
agree as to
drainage of
lands &c.

23. The Company may make and carry into effect agreements with the owners lessees or occupiers of any lands within the drainage area of the wells and other works by this Act sanctioned confirmed or authorised with reference to the execution by the Company or such owners lessees or occupiers of such works as may be necessary for the purpose of draining such lands or any of them or for more effectually collecting conveying and preserving the purity of the waters by this Act authorised to be diverted collected and appropriated by the Company flowing to upon or from such lands directly or derivatively into such wells and works.

Power to
hold lands
for protec-
tion of water-
works.

24. The Company may hold any lands acquired by them under the powers of this Act which they may deem necessary for the purpose of protecting their waterworks against pollution fouling and contamination and so long as such necessity shall continue such lands shall not be deemed to be superfluous lands within the meaning of this Act or the Lands Clauses Acts respectively but the Company shall not create or permit a nuisance on any such lands and shall not erect any buildings thereon other than offices and dwellings for persons in their employ and such buildings and works as may be incident to or connected with their water undertaking.

Company
may sell &c.
surplus lands
of under-
taking.

25. The Company may subject to the provisions of the Lands Clauses Consolidation Act 1845 with respect to the sale of superfluous lands sell lease exchange or otherwise dispose of to such persons in such manner as the Company may think fit any lands houses or other property for the time being belonging to the Company which they do not require for the purposes of their undertaking.

Discharge of
water into
streams.

26.—(1) For the purpose of executing constructing repairing cleansing emptying or examining any reservoir conduit or line of pipes or other works of the Company the Company may cause the water in any such work to be discharged into any

available stream or watercourse whether within or without the Company's limits of supply. A.D. 1910.

(2) In the exercise of the power conferred by this section the Company shall do as little damage as may be and shall make full compensation to all persons for all damage sustained by them by reason or in consequence of the exercise of such power the amount of compensation to be settled in case of difference by arbitration under and pursuant to the provisions of the Arbitration Act 1889.

27. The Company shall not sink any well upon or construct any works for taking or intercepting water from any lands acquired by them unless the works and the lands upon which the same are to be constructed are specified in this or some other Act of Parliament or Provisional Order confirmed by Parliament. Limiting powers of Company to abstract water.

28. The Company may from time to time raise additional capital not exceeding in the whole sixty thousand pounds by the creation and issue of new ordinary shares or stock or new preference shares or stock or wholly or partially by one or more of those modes respectively Provided that it shall not be lawful for the Company to create and issue under the powers of this Act any greater nominal amount of capital than shall be sufficient to produce including any premium which may be obtained on the sale thereof the sum of sixty thousand pounds nor shall the Company issue any share created under the authority of this Act of less nominal value than ten pounds: Power to Company to raise additional capital.

Provided also that the Company shall not raise under the powers of this Act more than one-half of such additional capital by the issue of new preference shares or stock.

29.—(1) All shares or stock created under the powers of this Act shall be issued in accordance with the provisions of this section. Shares or stock in additional capital to be sold by auction or tender.

(2) All shares or stock so to be issued shall be offered for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the Company shall from time to time determine Provided as follows:—

(A) Notice of the intended sale shall be given in writing to the town clerk of the county borough of Southampton to the town clerk of the borough of Romsey

A.D. 1910.

and to the clerk of the council of every district wholly or partially included within the limits of the Company and to the secretary of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and shall also be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the said limits of supply:

- (B) A reserve price shall be fixed and notice thereof shall be sent by the Company in a sealed letter to be received by the Board of Trade not less than twenty-four hours before but not to be opened till after the day of auction or last day for the receipt of tenders as the case may be:
- (C) No lot offered for sale shall comprise shares or stock of greater nominal value than one hundred pounds:
- (D) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum. In the case of a sale by auction a bid shall not be recognised unless it is in advance of the last preceding bid:
- (E) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Company within three months after the date of the auction or of the acceptance of the tender as the case may be.

(3) Any shares or stock which have been so offered for sale and are not sold may be offered at the reserve price to the holders of ordinary and preference shares or stock of the Company in accordance with the provisions of sections 18 19 and 20 of the Companies Clauses Act 1863 and to the employees of the Company and to the consumers of water supplied by the Company in such proportions as the Company may think fit or to one or more of these classes of persons only. Provided in the case of an offer to holders of shares or stock that if the aggregate amount of shares or stock applied for shall exceed the aggregate amount so offered as aforesaid the same shall be allotted to and distributed amongst the applicants as nearly as may be in proportion to the amounts applied for by them respectively.

(4) Any shares or stock which have been offered for sale in accordance with subsection (2) or with subsections (2) and (3) and are not sold shall be again offered for sale by public auction or by tender in accordance with the provisions of this section and any such shares or stock then remaining unsold may be otherwise disposed of at such price and in such manner as the directors may determine for the purpose of realising the best price obtainable. A.D. 1910.

(5) As soon as possible after the conclusion of the sale or sales the Company shall send a report thereof to the Board of Trade stating the total amount of the respective shares or stock sold the total amount obtained as premium (if any) and the highest and lowest prices obtained for the respective shares or stock.

30. Except as otherwise expressly provided by the resolution creating the same no person shall be entitled to vote in respect of any new shares or stock to which a preferential dividend shall be assigned. As to voting in respect of preference capital.

31. Except as by this Act provided the additional capital created by the Company under this Act and the new shares or stock therein and the holders thereof respectively shall be subject and entitled to the same powers provisions liabilities rights privileges and incidents whatsoever in all respects as if the additional capital were part of the existing capital of the Company of the same class or description and the new shares or stock were shares or stock in that capital. Provided that such holders shall not be entitled to participate in any dividend that may be declared to make up a deficiency of any previous dividend upon shares forming part of the said existing capital. Except as otherwise provided new shares or stock to be subject to same incidents as existing shares or stock.

32. The Company shall not in any year pay out of their profits any larger dividend on the additional capital than at the rate of five pounds in respect of every one hundred pounds actually paid up of so much of such capital as may be issued as ordinary capital unless a larger dividend be at any time necessary to make up the deficiency of any previous dividend which shall have fallen short of the said five pounds per centum per annum. Limits of dividend on new capital.

33. In case in any half-year the funds of the Company applicable to dividend shall be insufficient to pay the full amount of the prescribed maximum rate of dividend on each class of Dividends on different classes of ordinary

A.D. 1910.
capital to
be paid pro-
portionately.

ordinary stock or shares in the capital of the Company a proportionate reduction shall be made in the dividend of each class but it shall be lawful for the directors to vary such proportionate reduction to such extent not exceeding one-eighth per centum as they may think convenient in order to avoid the payment as part of the dividend due to any shareholder of fractions of sixpence.

Power to
borrow in
respect of
additional
capital.

34. The Company may subject to the provisions of this Act borrow on mortgage of the undertaking any sum or sums not exceeding in the whole one-fourth part of the amount of the additional capital which at the time of borrowing has been raised under the powers of this Act But no sum shall be borrowed in respect of any capital so raised until the Company have proved to a justice of the peace before he gives his certificate under the fortieth section of the Companies Clauses Consolidation Act 1845 that the whole of the stock or shares at the time issued together with any premium (if any) realised on the sale thereof have been fully paid up.

Power to
create debenture stock.

35. The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 and of section 44 of the Act of 1899.

Priority of
money raised
on mortgage
or debenture
stock over
certain other
claims.

36. All money to be raised by the Company on mortgage or debenture stock under the provisions of this Act shall have priority against the Company and the property from time to time of the Company over all other claims on account of any debts incurred or engagements entered into by them after the passing of this Act Provided always that this priority shall not affect any claim against the Company or their property in respect of any rentcharge granted or to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease granted or made to the Company which is entitled to rank in priority to or *pari passu* with the interest on their mortgages or debenture stock nor shall anything in this section contained affect any claim for land taken used or occupied by the Company for the purposes of the undertaking and works or injuriously affected by the construction thereof or by the exercise of any powers conferred on the Company.

Existing
mortgages
to have
priority.

37. All mortgages granted by the Company in pursuance of the powers of any Act of Parliament before the passing of this Act and subsisting at the passing hereof shall during the

continuance of such mortgages and subject to the provisions of the Acts under which such mortgages were respectively granted have priority over any mortgages granted by virtue of this Act but nothing in this section contained shall affect any priority of the interest of any debenture stock at any time created and issued by the Company. A.D. 1910.

38. Notwithstanding anything contained in the Act of 1876 the Act of 1878 or the Act of 1894 the Company shall not exercise in respect of any money borrowed by them the powers of the Companies Clauses Consolidation Act 1845 with respect to the conversion of borrowed money into capital. Company not to convert borrowed money into capital.

39. Section 42 of the Act of 1899 is hereby repealed as from the passing of this Act but without prejudice to any appointment heretofore made or to the continuance of any proceedings then pending. Appointment of receiver.

The mortgagees of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver and in order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than seven thousand pounds in the whole.

40. All moneys raised under this Act including premiums after deducting therefrom the expenses of and incident to the raising of such moneys shall be applied only to purposes to which capital is properly applicable and any sum of money which may arise by way of premium from the issue of shares or stock under the provisions of this Act shall not be considered as part of the capital of the Company entitled to dividend and any such premiums may be expended in extending or improving the works of the Company or in paying off money borrowed or owing on mortgage by the Company Provided that in any case where a power to raise money by borrowing or to create an insurance or reserve fund is made proportionate to the paid-up capital the premium received from the sale of shares or stock by auction or tender as hereinbefore provided shall for such purpose be reckoned as part of the paid-up capital. Application of moneys.

41. As from the first day of January one thousand nine hundred and eleven section 42 of the Act of 1876 shall be repealed and in lieu thereof the following provisions shall be in Rates of supply for domestic purposes.

A.D. 1910. force and have effect (that is to say) The Company shall at the request of the owner or occupier of any dwelling-house or part of a dwelling-house entitled to demand a supply of water for domestic purposes furnish to such owner or occupier a sufficient supply of water for domestic purposes at the rates per annum hereinafter specified (that is to say) :—

Where the rateable value of the premises so supplied with water does not exceed five pounds twelve shillings the sum of eight shillings and eightpence :

Where such rateable value exceeds five pounds twelve shillings at a rate not exceeding seven pounds ten shillings per centum on such rateable value.

The rateable value of any such premises as aforesaid shall be ascertained by the valuation list in force at the commencement of the quarter in which the rate accrues or if there is no such list in force by the last rate made for the relief of the poor :

Provided that where the water rate is chargeable on the rateable value of a part only of any hereditament entered in the valuation list such rateable value shall be a fairly apportioned part of the rateable value of the whole tenement ascertained as aforesaid the apportionment in case of dispute to be determined by a court of summary jurisdiction In addition to the foregoing charges the Company may charge in respect of every watercloset beyond the first (for which no additional charge shall be made) on any premises within the limits of supply of the Company a sum not exceeding five shillings per annum and for every fixed bath capable of containing not more than fifty gallons a sum not exceeding seven shillings and sixpence per annum and for every fixed bath capable of containing more than fifty gallons such sum as the Company may think fit such additional sum to be paid quarterly in advance and to be recoverable in all respects with and as the water rate.

Rates payable by owners of small houses.

42. Where a house supplied with water is let to monthly or weekly tenants or tenants holding for any other period less than a quarter of a year the owner instead of the occupier shall if the Company so determine pay the rate for the supply but the rate may be recovered from the occupier and may be deducted by him from the rent from time to time due from him to the owner Provided that no greater sum shall be recovered at any one time from any such occupier than the amount of rent owing by him

or which shall have accrued due from him subsequent to the service upon him of a notice to pay the rate. A.D. 1910.

43. The Company shall not be bound to supply with water otherwise than by measure any building used by an occupier as a dwelling-house whereof any part is used by the same occupier for any trade business or manufacturing purpose for which water is required. Supply to houses partly used for trade &c.

44. Subject to the provisions of the Waterworks Clauses Act 1847 the Company may for the purpose of preventing and detecting waste affix and maintain meters and similar apparatus on the service pipes and mains of the Company and stopcocks in the pipes supplying houses with water and may insert in the roads or footways the necessary covers of boxes for giving access and protection thereto and may for that purpose break up and interfere temporarily with public and private streets roads lanes footways courts passages tramways gas or water pipes electric lines wires and apparatus: Detection of waste.

Provided that the Company shall not break up or interfere with any electric lines wires or apparatus of the Postmaster-General except in accordance with and subject to the provisions of the Telegraph Act 1878.

45.—(1) The Company may make byelaws for the purpose of preventing the waste undue consumption misuse or contamination of water and may by such byelaws prescribe the size nature materials workmanship and strength and the mode of arrangement connection disconnection alteration and repair of pipes meters cocks ferrules valves soil-pans waterclosets baths cisterns and other apparatus (in this section referred to as “water fittings”) to be used and forbid any arrangements and the use of any water fittings which may allow or tend to waste undue consumption misuse erroneous measurement or contamination. Byelaws for preventing waste &c. of water.

(2) Such byelaws shall apply only in the case of premises to which the Company are bound to afford and do in fact afford or are prepared on demand to afford a constant supply.

(3) All such byelaws shall be subject to the provisions contained in sections 182 183 184 and 186 of the Public Health Act 1875 and all penalties imposed for the breach of any such byelaws shall be recoverable in manner provided by that Act for the recovery of penalties and those sections shall for the purposes of this

A.D. 1910. section be construed as if the Company were a local authority within the meaning of those sections and the secretary of the Company were the clerk of the local authority.

(4) A copy of all such byelaws in force for the time being shall be kept at the office of the Company. All persons may at all reasonable times inspect such copy without payment and the Company shall cause to be delivered a printed copy of all byelaws for the time being in force to every person applying for the same on payment of a sum not exceeding sixpence for each copy.

(5) In case of failure of any person to observe such byelaws as are for the time being in force the Company may if they think fit after twenty-four hours' notice in writing enter and by and under the direction of their duly authorised officer repair replace or alter any water fittings belonging to or used by such person and not being in accordance with the requirements of such byelaws and the expense of every such repair replacement or alteration shall be recoverable by the Company as the water rates in respect of the premises are recoverable.

Power to
supply
fittings.

46.—(1) The Company may if requested by any person supplied or about to be supplied by them with water furnish to him and repair or alter but shall not manufacture any such pipes valves cocks cisterns baths meters soil-pans waterclosets and other fittings as are required or permitted by their regulations and may provide all materials and work necessary or proper in that behalf and the reasonable charges of the Company in providing such materials and executing such work shall be paid by the person requiring the same.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be. Provided that such fittings have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Company as the actual owners thereof.

Injuring
meters &c.

47. Every person who wilfully fraudulently or by culpable negligence injures or suffers to be injured any pipe meter or other instrument for measuring water or any fittings belonging to

the Company or who fraudulently alters the index to any meter or other instrument for measuring water or prevents any meter or other instrument for measuring water from duly registering the quantity of water supplied or fraudulently abstracts consumes or uses water of the Company shall (without prejudice to any other right or remedy for the protection of the Company) be liable to a fine not exceeding five pounds and the Company may in addition thereto recover the amount of any damage by them sustained : A.D. 1910.

And in any case in which any person has wilfully fraudulently or by culpable negligence injured or suffered to be injured any pipe meter instrument or fittings belonging to the Company or has fraudulently altered the index to any meter or other instrument for measuring water or prevented the same from duly registering the quantity of water supplied or has fraudulently abstracted consumed or used water of the Company the Company may also enter upon the premises occupied by the offender and repair such injury and do all such works matters and things as may be necessary for insuring the proper registering by such meter of the quantity of water supplied by means thereof and the expense of such repair and of all such works matters and things shall be repaid to the Company by the person so offending and may be recovered by them as water rates are recoverable The existence of artificial means for causing such injury alteration or prevention or for abstracting consuming or using water of the Company when such pipe meter instrument or fittings is or are under the custody or control of the consumer shall be *prima facie* evidence that such injury alteration prevention abstraction consumption or use as the case may be has been fraudulently knowingly and wilfully caused by the consumer using such pipe meter instrument or fittings.

48. Where the Company supply water by measure the register of the meter or other instrument for measuring water shall be *prima facie* evidence of the quantity consumed and in respect of which any water rate is charged and sought to be recovered by the Company Provided always that if the Company and the consumer differ as to the quantity consumed such difference shall be determined upon the application of either party by a court of summary jurisdiction who may also order by which of the parties the costs of the proceedings before them shall be paid and the decision of such court shall be final and binding on all parties. Register of
meter to be
evidence.

A.D. 1910.

Notice to
Company of
connection
or discon-
nection of
meters.

49. Before any person connects or disconnects any meter by means of which any of the water of the Company is intended to be or has been registered he shall give not less than twenty-four hours' notice in writing to the Company of his intention to do so and all alterations or repairs and the connecting and disconnecting of meters shall be done at his cost and under due superintendence of any officer of or person authorised by the Company and any person offending against this enactment shall for every such offence be liable to a penalty not exceeding forty shillings.

Several sums
in one sum-
mons.

50. Where the payment of more than one sum by any person is due under the South Hants Waterworks Acts 1876 to 1910 any summons or warrant issued for the purposes of any of those Acts in respect of that person may contain in the body thereof or in a schedule thereto all the sums payable by him.

Contracts
not to dis-
qualify for
office of
director.

51. No person shall be disqualified from becoming or continuing a director of the Company by reason of his or any partners of his being or becoming interested in any contract with the Company either in his own behalf or as a member of any other company corporation local authority or partnership but no such person shall as a director vote in respect of any question as to any such contract or the remuneration attached to any such office or place of trust or profit.

Repeal of
certain sec-
tions of Acts
of 1876 and
1894.

52. As from the passing of this Act the sections of the Acts of 1876 and 1894 hereinafter mentioned shall be and the same are hereby repealed (that is to say):—

Act of 1876—

Section 31 (Contracts not to disqualify for office of director);

Section 43 (Rates for waterclosets and baths);

Section 44 (For preventing fouling of water);

Section 49 (Entry on premises to cut off supply in certain cases);

Section 50 (Mode of giving notice);

Section 51 (Service pipes);

Section 53 (Notice to Company of putting up meters);

Section 55 (Register of meters to be *primâ facie* evidence);

Section 56 (Fraudulently injuring meters &c.);

Section 58 (Power to Company to supply materials);

Section 59 (Incoming tenant not liable for arrears);

Section 61 (Recovery of sums due);

A.D. 1910.

Section 64 (Contents of summons &c.);

Section 65 (Costs of distress):

Act of 1894—

Section 35 (Regulations for preventing waste of water);

Section 38 (Where several houses supplied with water by
one pipe each to pay);

Section 39 (Supply of water to tenements in a row);

Section 40 (Company may remove water pipes &c. from
unoccupied premises).

53. Nothing in this Act affects prejudicially any estate right ^{Crown}
power privilege or exemption of the Crown and in particular ^{rights.}
nothing herein contained authorises the Company to take use
or in any manner interfere with any portion of the shore or bed
of the sea or of any river channel creek bay or estuary or any
land hereditaments subjects or rights of whatsoever description
belonging to His Majesty in right of His Crown and under the
management of the Commissioners of Woods or of the Board of
Trade respectively without the consent in writing of the Com-
missioners of Woods or the Board of Trade as the case may be on
behalf of His Majesty first had and obtained for that purpose
(which consent the said Commissioners and Board are hereby
respectively authorised to give).

54. All costs charges and expenses of and incident to the ^{Costs of Act.}
preparing for obtaining and passing of this Act or otherwise in
relation thereto shall be paid by the Company.

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...and the fact that the *in vitro* and *in vivo* results are in good agreement.

[illegible]

100

1. *Pharmaceutical industry*
 2. *Medical research*
 3. *Healthcare costs*
 4. *Insurance industry*
 5. *Government regulation*
 6. *Consumer advocacy*
 7. *Academic research*
 8. *Public health*
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 27. *Medical research ethics guidelines*
 28. *Healthcare economics research*
 29. *Medical research methods review*
 30. *Healthcare law reform*
 31. *Medical research results analysis*
 32. *Healthcare reform implementation*
 33. *Medical research funding distribution*
 34. *Healthcare policy impact*
 35. *Medical research ethics education*
 36. *Healthcare economics policy*
 37. *Medical research methods training*
 38. *Healthcare law enforcement*
 39. *Medical research results dissemination*
 40. *Healthcare reform evaluation*
 41. *Medical research funding oversight*
 42. *Healthcare policy development*
 43. *Medical research ethics monitoring*
 44. *Healthcare economics analysis*
 45. *Medical research methods validation*
 46. *Healthcare law reform proposals*
 47. *Medical research results interpretation*
 48. *Healthcare reform legislation*
 49. *Medical research funding allocation*
 50. *Healthcare policy implementation*
 51. *Medical research ethics enforcement*
 52. *Healthcare economics research funding*
 53. *Medical research methods development*
 54. *Healthcare law enforcement reform*
 55. *Medical research results communication*
 56. *Healthcare reform implementation challenges*
 57. *Medical research funding transparency*
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 59. *Medical research ethics education reform*
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2. *Phragmites* (common)

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